# Report

*of the*

# SECRETARY OF STATE

## OF ARIZONA

**JANUARY 2, 1917**




SIDNEY P. OSBORN
Secretary of State

*Published by*
**Board of Control, by Authority of Chapter XVIII, Title 1 Revised Statutes of Arizona, 1913, Civil Code**

# Report

OF THE

# Secretary of State

## of Arizona

JANUARY 2, 1917

SIDNEY P. OSBORN
Secretary of State

R. E. McGILLEN
Asst. Secretary

# RECEIPTS.

## MOTOR VEHICLE LICENSE FEES.

| | | |
|---|---|---|
| January | $39,477.50 | |
| February | 6,655.00 | |
| March | 4,637.50 | |
| April | 3,565.00 | |
| May | 3,572.00 | |
| June | 2,132.50 | |
| July | 2,342.50 | |
| August | 1,585.00 | |
| September | 1,067.50 | |
| October | 1,160.00 | |
| November | 1,012.50 | |
| December | 7.50 | |
| | | $67,214.50 |

## MOTORCYCLE LICENSE FEES.

| | | |
|---|---|---|
| January | $ 722.00 | |
| February | 230.00 | |
| March | 172.00 | |
| April | 96.00 | |
| May | 129.00 | |
| June | 40.00 | |
| July | 40.00 | |
| August | 30.00 | |
| September | 18.00 | |
| October | 10.00 | |
| November | 5.00 | |
| December | ..... | |
| | | $ 1,492.00 |

## CHAUFFEUR LICENSE FEES.

| | | |
|---|---|---|
| January | $ 410.00 | |
| February | 370.00 | |
| March | 200.00 | |
| April | 325.00 | |
| May | 300.00 | |
| June | 305.00 | |
| July | 437.50 | |
| August | 627.50 | |
| September | 405.00 | |
| October | 335.00 | |
| November | 260.00 | |
| December | 160.00 | |
| | | $ 4,135.00 |

## TRANSFER FEES.

| | | |
|---|---|---|
| January | $ 17.00 | |
| February | 61.00 | |
| March | 137.00 | |
| April | 125.00 | |
| May | 141.00 | |
| June | 149.00 | |
| July | 58.00 | |
| August | 48.00 | |
| September | 34.00 | |
| October | 44.50 | |
| November | 28.50 | |
| December | 6.00 | |
| | | $ 849.00 |

## SALE OF EXTRA PLATES AND BADGES.

| | | |
|---|---|---|
| January | 114.50 | |
| February | 10.75 | |
| March | 15.00 | |
| April | 16.50 | |
| May | 18.00 | |
| June | 14.75 | |
| July | 11.25 | |
| August | 15.75 | |
| September | 14.00 | |
| October | 8.00 | |
| November | 3.50 | |
| December | 4.50 | |
| | | $ 246.50 |

Total Motor Vehicle Fees ..... $73,937.00

## NOTARY PUBLIC FEES.

| | | | |
|---|---|---|---|
| January | 118 at $2.50 | $ 295.00 | |
| February | 188 at 2.50 | 470.00 | |
| March | 89 at 2.50 | 222.50 | |
| April | 53 at 2.50 | 132.50 | |
| May | 39 at 2.50 | 97.50 | |
| June | 39 at 2.50 | 97.50 | |
| July | 16 at 2.50 | 40.00 | |
| August | 27 at 2.50 | 67.50 | |
| September | 16 at 2.50 | 40.00 | |
| October | 21 at 2.50 | 52.50 | |
| November | 29 at 2.50 | 72.50 | |
| December | 45 at 2.50 | 112.50 | |
| | | | $ 1,700.00 |

## CERTIFIED LAWS.

| | | |
|---|---|---|
| January | $ | |
| February | 19.10 | |
| March | 2.40 | |
| April | | |
| May | 9.50 | |
| June | | |
| July | 11.70 | |
| August | 8.00 | |
| September | 5.45 | |
| October | 22.40 | |
| November | 16.10 | |
| December | 6.80 | |
| | | $ 101.45 |

## SALE OF SESSION LAWS 1912-1915.

| | | |
|---|---|---|
| January | $ 13.00 | |
| February | 14.30 | |
| March | 7.80 | |
| April | 15.60 | |
| May | 12.70 | |
| June | 16.00 | |
| July | 6.50 | |
| August | 9.10 | |
| September | 9.10 | |
| October | 10.40 | |
| November | 14.30 | |
| December | 12.10 | |
| | | $ 140.90 |

## SALE OF REVISED STATUTES 1913.

| | | |
|---|---|---|
| January | $ 34.00 | |
| February | 37.00 | |
| March | 54.00 | |
| April | 70.00 | |
| May | 46.00 | |
| June | 43.00 | |
| July | 28.00 | |
| August | 23.00 | |
| September | 23.00 | |
| October | 65.00 | |
| November | 41.00 | |
| December | 46.00 | |
| | | $ 510.00 |

## CERTIFICATE AND SEAL.

| | | |
|---|---|---|
| January | $ 6.00 | |
| February | 10.00 | |
| March | 23.00 | |
| April | 9.50 | |
| May | 14.00 | |
| June | 5.00 | |
| July | 5.00 | |
| August | 10.00 | |
| September | 7.00 | |
| October | 6.50 | |
| November | 2.00 | |
| December | 47.00 | |
| | | $ 145.00 |

## REQUISITIONS.

| | | |
|---|---|---|
| January | $ 10.00 | |
| February | ..... | |
| March | 15.00 | |
| April | 5.00 | |
| May | ..... | |
| June | 10.00 | |
| July | 20.00 | |
| August | ..... | |
| September | 15.00 | |
| October | ..... | |
| November | ..... | |
| December | 5.00 | |
| | | $ 80.00 |

## POSTAGE AND EXPRESS.

| | | |
|---|---|---|
| January | $ .75 | |
| February | 1.32 | |
| March | 2.08 | |
| April | 5.23 | |
| May | 2.01 | |
| June | 3.51 | |
| July | 2.63 | |
| August | 1.98 | |
| September | .75 | |
| October | 4.60 | |
| November | 2.66 | |
| December | 1.22 | |
| | | $ 28.74 |

## DENTAL EXAMINATION FEES.

| | | |
|---|---|---|
| January | $ | |
| February | | |
| March | | |
| April | 25.00 | |
| May | 25.00 | |
| June | | |
| July | | |
| August | | |
| September | 100.00 | |
| October | 100.00 | |
| November | | |
| December | | |
| | | $ 250.00 |

## PUBLICITY PAMPHLET ARGUMENT FEES.

| | | |
|---|---|---|
| July | $ 717.30 | |
| | | $ 717.30 |

## MISCELLANEOUS FEES.

| | | |
|---|---|---|
| January | $ 15.00 | |
| February | 10.70 | |
| March | 93.50 | |
| April | 27.40 | |
| May | 13.25 | |
| June | 30.45 | |
| July | 25.35 | |
| August | 9.05 | |
| September | 19.65 | |
| October | 3.10 | |
| November | 5.00 | |
| December | 14.50 | |
| | | $ 266.95 |

Total Receipts During 1916 ..... $77,877.34

## RECAPITULATION

| | 1916 | 1915 | 1914 | 1913 |
|---|---|---|---|---|
| Motor Vehicle Licenses | $67,214.50 | $40,909.50 | $29,864.00 | $ 8,110.50 |
| Motorcycle Licenses | 1,492.00 | 1,436.00 | 1,397.00 | |
| Chauffeur Licenses | 4,135.00 | 2,410.00 | 2,191.00 | 2,067.00 |
| Transfer Fees | 849.00 | 656.50 | 465.50 | 432.50 |
| Extra Plates and Badges | 246.50 | 167.00 | 160.00 | |
| Notary Public Fees | 1,700.00 | 602.50 | 557.50 | 460.00 |
| Certified Laws | 101.45 | 277.75 | 330.05 | 1,356.35 |
| Session Laws 1912-13-15 | 140.90 | 326.40 | 69.90 | 250.30 |
| Revised Statutes 1901-13 | 510.00 | 695.00 | 2,810.40 | 115.00 |
| Certificate and Seal | 145.00 | 69.00 | 81.00 | 89.50 |
| Requisitions | 80.00 | 65.00 | 52.50 | 45.00 |
| Postage and Express | 28.74 | 46.27 | 90.66 | 42.05 |
| Dental Examination Fees | 250.00 | 325.00 | 75.00 | 325.00 |
| Publicity Pam. Arg. Fees | 717.30 | ..... | ..... | ..... |
| Miscellaneous Fees | 266.95 | 443.30 | 407.21 | 549.37 |
| Total | $77,877.34 | $48,429.22 | $38,551.72 | $13,842.57 |

## MONEYS PAID TO STATE TREASURER

| 1916 | Rec. No. | Month | Motor Vehicle | Revised Statutes | Misc. |
|---|---|---|---|---|---|
| Feb. 28 | 324 | January | $40,741.00 | | |
| Feb. 28 | 322 | January | | $34.00 | |
| Feb. 28 | 323 | January | | | $339.75 |
| Mar. 11 | 359 | February | 7,326.75 | | |
| Mar. 11 | 356 | February | | 37.00 | |
| Mar. 11 | 357 | February | | | 525.42 |
| Apr. 6 | 414 | March | 5,161.50 | | |
| Apr. 6 | 415 | March | | 54.00 | |
| Apr. 6 | 416 | March | | | 366.28 |
| May 27 | 512 | April | 4,127.50 | | |
| May 27 | 510 | April | | 70.00 | |
| May 27 | 511 | April | | | 220.23 |
| June 6 | 537 | May | 4,160.00 | | |
| June 6 | 536 | May | | 46.00 | |
| June 6 | 538 | May | | | 173.96 |
| July 15 | 32 | June | 2,641.25 | | |
| July 15 | 33 | June | | 43.00 | 162.46 |
| Aug. 4 | 63 | July | 2,889.25 | | |
| Aug. 4 | 64 | July | | 28.00 | |
| Aug. 4 | 66 | July | | | 111.18 |
| Aug. 4 | 65 | July | (Pub. Pam. Argument Fees). | | 717.30 |
| Sept. 14 | 140 | August | 2,306.25 | | |
| Sept. 14 | 141 | August | | 23.00 | |
| Sept. 14 | 142 | August | | | 105.63 |
| Oct. 16 | 217 | September | 1,538.50 | | |
| Oct. 16 | 218 | September | | 23.00 | 96.95 |
| Oct. 16 | 218 | September | (Dental Examination Fees). | | 100.00 |
| Nov. 20 | 291 | October | 1,557.50 | | |
| Nov. 20 | 290 | October | | 65.00 | 99.50 |
| Nov. 20 | 290 | October | (Dental Examination Fees). | | 100.00 |
| Dec. 16 | 393 | November | 1,309.50 | | |
| Dec. 16 | 392 | November | | 41.00 | 112.56 |
| 1917 | | | | | |
| Jan. 26 | 510 | December | 178.00 | | |
| Jan. 26 | 511 | December | | 46.00 | 199.12 |
| Totals | | | $73,937.00 | $ 510.00 | $ 3,430.34 |

| | |
|---|---|
| Motor Vehicle Fees | $73,937.00 |
| Revised Statutes Fees | 510.00 |
| Miscellaneous Fees | 3,430.34 |
| **Total** | **$77,877.34** |

# EXPENDITURES 1916.

## SALARIES.

| | | |
|---|---|---|
| Sidney P. Osborn, Secretary | $ 3,500.00 | |
| R. E. McGillen, Assistant Secretary | 2,400.00 | |
| Kathryn Miller, Stenographer | 900.00 | |
| Louise E. Gass, Stenographer | 300.00 | |
| John A. Norton, Stenographer | 1,200.00 | |
| | | $ 8,300.00 |

## CONTINGENT FUND.

| | | |
|---|---|---|
| Stationery | $ 142.01 | |
| Printing | 678.85 | |
| *Postage | 1,100.00 | |
| Premiums on Bonds | 40.25 | |
| Express | 17.03 | |
| Telephone, Long Distance | 24.70 | |
| *Stenographers | 990.00 | |
| Telegrams | 32.82 | |
| *Partly Motor Vehicle License Expense. | | $ 3,025.66 |

## MOTOR VEHICLE LICENSE FUND.

| | | |
|---|---|---|
| Number Plates and Badges | $ 2,288.69 | |
| Seal | 69.78 | |
| Stenographers | 1,314.00 | |
| Printing | 317.15 | |
| Postage | 700.00 | |
| Express | 32.90 | |
| | | $ 4,722.52 |

## STATE CANVASSING BOARD FUND.

| | | | |
|---|---|---|---|
| Blue Prints | (1914) | $ 60.81 | |
| Tabulation | (1916) | 5.00 | |
| | | | $ 65.81 |

## SUPREME COURT REPORTS VOL. 17.

| | | |
|---|---|---|
| Printing | $ 750.00 | |
| | | $ 750.00 |

## INITIATIVE AND REFERENDUM PUBLICITY PAMPHLET.

| | | |
|---|---|---|
| Printing | $ 3,458.15 | |
| Postage | 1,550.00 | |
| Stenographers | 2,181.00 | $ 7,189.15 |
| Total Expenditures, 1916 | | $24,053.14 |

## OFFICIAL ACTS OF THE GOVERNOR.

The records of this Department, kept in accordance with the provisions of Subdivision 2, Paragraph 57, Chapter VII, Title I, Civil Code, Revised Statutes, 1913, show that the Governor has, upon the recommendation of the Board of Pardons and Paroles, granted 4 unconditional pardons, 76 restorations to citizenship, and 200 paroles; has issued 3 proclamations of reprieves. He has issued 17 holiday and other proclamations, has honored 15 requisitions from governors of other States for prisoners held in this State; and has issued 18 extraditions for prisoners held in other States, and wanted for crimes committed in this State; has issued 680 Notarial commissions and made 6 executive appointments.

---

## ARIZONA REPORTS, VOLUME 17.

This volume, containing the decisions of the Supreme Court from April 20, 1915, to February 25, 1916, was compiled by the Reporter of Decisions of the Court, and 250 copies were purchased and distributed in accordance with law, by this Department. These cost the State $750.00.

---

## DENTAL LICENSES.

During the year 1916 there were thirteen applications made for licenses to practice dentistry. At the examination given by the State Board of Dental Examiners held during the week October 9 to 14, 1916, four of the applicants made the required grade and were, therefore, upon recommendation of the Board of Dental Examiners, licensed to practice dentistry in this State.

## MOTOR VEHICLE DEPARTMENT.

Following is given a comparative table showing, by type, the number of vehicles registered in this Department during each of the years 1912-13, 1914, 1915 and 1916; also table showing the 1916 registration by counties, and table showing license fees collected during each of the years 1912-13, 1914, 1915 and 1916:

## MOTOR VEHICLE REGISTRATION.

| | 1916 | 1915 | 1914 | 1912-13 |
|---|---|---|---|---|
| Total number of Motor Vehicles | 12124 | 7318 | 5040 | 3098 |
| Number of gasoline passenger cars | 11383 | 6851 | 4757 | 2923 |
| Number of electric passenger cars | 14 | 22 | 17 | 10 |
| Number of trucks and delivery cars | 723 | 435 | 266 | 165 |
| Number of steam cars | 4 | ..... | ..... | ..... |
| Number of motorcycles | 806 | 772 | 743 | 485 |
| Number of transfers of licenses | 550 | 405 | 266 | 138 |
| Number of chauffeur licenses | 830 | 482 | 439 | 703 |

## MOTOR VEHICLE REGISTRATION BY COUNTIES, 1916.

| | Motor Vehicle | Motorcycle | Transfers |
|---|---|---|---|
| Apache | 116 | 6 | 6 |
| Cochise | 2111 | 126 | 90 |
| Coconino | 305 | 10 | 5 |
| Gila | 1157 | 69 | 55 |
| Graham | 324 | 20 | 6 |
| Greenlee | 198 | 4 | 9 |
| Maricopa | 3840 | 409 | 237 |
| Mohave | 753 | 9 | 20 |
| Navajo | 242 | 3 | 18 |
| Pima | 1133 | 51 | 45 |
| Pinal | 352 | 13 | 17 |
| Santa Cruz | 397 | 16 | 8 |
| Yavapai | 812 | 15 | 27 |
| Yuma | 383 | 55 | 7 |
| Total | 12124 | 806 | 550 |

## TOTAL FEES RECEIVED.

| | 1916 | 1915 | 1914 | 1912-13 |
|---|---|---|---|---|
| Motor Vehicle licenses | $67,214.50 | $40,909.50 | $29,864.00 | $16,948.50 |
| Motorcycle licenses | 1,492.00 | 1,436.00 | 1,397.00 | |
| Chauffeur licenses | 4,135.00 | 2,410.00 | 2,191.00 | 3,517.00 |
| Extra plates sold | 246.50 | 167.00 | 160.00 | 467.50 |
| Transfer fees | 849.00 | 656.50 | 465.50 | |
| Total | $73,937.00 | $45,579.00 | $34,077.50 | $20,933.00 |

You will note the fact that the foregoing tables show the increase in the number of automobiles registered in 1916 over the number registered in 1915 to be 4806, an increase of 65.67 per cent, and the increase in revenue to be $26,305.00, an increase of 64.3 per cent. If all signs do not fail, the increase during 1917 will be comparatively much greater than during the past year.

The Arizona Motor Vehicle Law is weak in places, and unjust in others, and therefore is sadly in need of amending. My recommendations are as follows:

That the ownership of a license be made non-transferable. In other words, that a license be issued to and belong to the individual instead of to the car as is now the case.

That a reciprocity agreement with other States be entered into, relative to the length of time a license from other States be recognized in this State.

That the chauffeur's license either be abolished, or an examination, both practical and technical, be provided by law. The present chauffeur's law is a farce; the chauffeurs get nothing for their money and the public, in general, is in no way protected from incompetent, inefficient or careless driving.

That a provision be made for the revocation of a chauffeur's license by the Secretary of State, with right of appeal.

That the use of dimmers be compulsory.

That the year be divided into twelve equal parts instead of halves, as it is now; the fee paid in January to be the full annual fee; that paid in February to be eleven-twelfths of the annual fee; that paid in March to be five-sixths of the annual fee, and so on.

That the transfer fees be reduced—on automobiles, from $2.00 to $.50, and on motorcycles, from $1.00 to $.25.

I am glad to say that the law is being rigidly enforced by the Sheriffs of the several counties, and there seems to be a disposition on the part of all the owners of machines to not only comply strictly with the provisions of the law, but to co-operate with this Department in every way.

---

## INITIATIVE AND REFERENDUM.

The number of signatures required to insure the submission of a proposition, under the powers of the Initiative or Referendum, at the General Election held November 7, 1916, was as follows:

| | |
|---|---|
| Constitutional Amendment | 7651 |
| Statute | 5101 |
| Referendum | 2551 |

The number that will be necessary to insure a proposition under the above mentioned powers at the General Election to be held in November, 1918, is as follows:

| | |
|---|---|
| Constitutional Amendment | 8744 |
| Statute | 5830 |
| Referendum | 2915 |

There were filed, during the years 1915-16, with this Department, petitions containing the requisite number of signatures asking that twelve propositions be submitted to the qualified electors, under the powers of the Initiative and Referendum, at the election held November 7, 1916. Of the twelve so submitted, but three—the proposed amendment to the Constitution entitled "Prohibition," the proposed act abolishing the Death Penalty and the proposed act relating to the Preservation of Fish and Game, were successful. All others failed. The vote, by counties, cast for and against each proposition, is as follows:

# GENERAL ELECTION RETURNS, STATE

## Proposed Amendments

### Proposed by the Legislature

| COUNTIES | 100 YES | 101 NO | 102 YES | 103 NO | 104 YES | 105 NO |
|---|---|---|---|---|---|---|
| | An Act to amend Subdivision 5, of Section 1, of Article IV, of the Constitution of the State of Arizona, and to provide for the submission of such proposed amendments to the people of the State of Arizona. "Initiative and Referendum Measures to become laws when approved by a majority of the total vote cast at election." | | Approving and proposing to the people of the State of Arizona an amendment of Section 2, Article 9, of the Constitution of the State of Arizona. "Exemptions from Taxation." | | That the Constitution of the State of Arizona be and is hereby amended by adding thereto another Article, the same to be numbered XXIV. "Prohibition." | |
| Apache | 187 | 336 | 121 | 373 | 629 | 167 |
| Cochise | 3287 | 3360 | 2556 | 2594 | 4182 | 3458 |
| Coconino | 721 | 471 | 505 | 557 | 822 | 748 |
| Gila | 1440 | 2343 | 1291 | 1458 | 2577 | 1818 |
| Graham | 786 | 617 | 430 | 725 | 1515 | 441 |
| Greenlee | 606 | 885 | 778 | 438 | 1291 | 489 |
| Maricopa | 5126 | 4801 | 3611 | 5319 | 8348 | 3809 |
| Mohave | 574 | 561 | 410 | 311 | 1006 | 526 |
| Navajo | 488 | 753 | 468 | 648 | 1233 | 337 |
| Pima | 1883 | 1411 | 1451 | 1477 | 2112 | 2044 |
| Pinal | 797 | 662 | 585 | 698 | 1137 | 613 |
| Santa Cruz | 429 | 355 | 316 | 374 | 498 | 499 |
| Yavapai | 1522 | 1610 | 1171 | 1367 | 2169 | 1720 |
| Yuma | 510 | 796 | 603 | 543 | 954 | 710 |
| Totals | 18356 | 18961 | 14296 | 16882 | 28473 | 17379 |
| Majority | | 605 | | 2586 | 11094 | |

## OF ARIZONA, NOVEMBER 7, 1916.

### to The Constitution

**Proposed by Initiative Petition**

| An Act to amend Article IV of the Constitution of the State of Arizona, "Legislative Redistricting." | | That the amendment to the Constitution of the State of Arizona adopted at the General Election held on the 3rd day of November, 1914, and known as Article XXIII, be amended by adding thereto another section to be known as Section 4, "Local Option." | | To provide for the protection and safety of workmen in all places of employment and for the inspection and regulation of places of employment in all inherently hazardous works and occupations; providing a schedule of compensation for injury to or death of workmen and methods of paying the same and prescribing the liability of employers who do not elect to pay such compensation; establishing the Industrial Accident Board, defining its powers and duties; providing for a review of its awards; and abrogating any and all laws and Constitutional provisions in conflict herewith. | | An Act to amend Article IV, of the Constitution of the State of Arizona. "Abolishing State Senate." | |
|---|---|---|---|---|---|---|---|
| 106<br>YES | 107<br>NO | 108<br>YES | 109<br>NO | 110<br>YES | 111<br>NO | 112<br>YES | 113<br>NO |
| 86 | 418 | 88 | 599 | 182 | 412 | 44 | 489 |
| 4150 | 2401 | 2837 | 4729 | 3339 | 3530 | 2283 | 3836 |
| 502 | 554 | 491 | 895 | 853 | 516 | 394 | 806 |
| 1016 | 2116 | 1302 | 2587 | 1605 | 2365 | 1872 | 1554 |
| 377 | 800 | 199 | 1540 | 633 | 807 | 221 | 975 |
| 470 | 882 | 422 | 1142 | 586 | 997 | 750 | 657 |
| 4618 | 4412 | 2640 | 8841 | 3726 | 6513 | 1975 | 6917 |
| 446 | 669 | 481 | 921 | 888 | 629 | 713 | 578 |
| 296 | 759 | 224 | 1198 | 427 | 737 | 304 | 713 |
| 1027 | 1844 | 2033 | 2354 | 1863 | 1624 | 823 | 2140 |
| 664 | 539 | 479 | 1135 | 888 | 696 | 410 | 839 |
| 304 | 315 | 459 | 488 | 584 | 256 | 239 | 386 |
| 1423 | 1430 | 1182 | 2481 | 1896 | 1444 | 1175 | 1651 |
| 352 | 782 | 540 | 1024 | 591 | 729 | 428 | 745 |
| 15731 | 17921 | 13377 | 29934 | 18061 | 21255 | 11631 | 22286 |
| | 2190 | | 16557 | | 3194 | | 10655 |

## GENERAL ELECTION RETURNS, STATE

### Proposed by Initiative

| COUNTIES | An Act relating to the enforcement of the Death Penalty and amending Paragraph 173, Chapter I, Title VIII, Penal Code, of the Revised Statutes of Arizona, 1913, "Abolishing Death Penalty." | | An Act creating a Department of Labor; prescribing the duties, powers, qualifications and compensation of the Commissioner of Labor and the employees of the Department; providing for a Board of Arbitration to act in conjunction with the Commissioner of Labor in certain instances and prescribing certain penalties for the violation of the provisions of this Act, and making appropriations for the carrying out of the provisions of this Act. | |
|---|---|---|---|---|
| | 300 YES | 301 NO | 302 YES | 303 NO |
| Apache | 221 | 384 | 84 | 452 |
| Cochise | 3023 | 3340 | 2708 | 3580 |
| Coconino | 567 | 688 | 439 | 720 |
| Gila | 2187 | 1514 | 2374 | 1082 |
| Graham | 430 | 879 | 187 | 1037 |
| Greenlee | 858 | 674 | 807 | 638 |
| Maricopa | 5208 | 5054 | 2074 | 7260 |
| Mohave | 860 | 549 | 885 | 390 |
| Navajo | 489 | 683 | 360 | 775 |
| Pima | 1707 | 1599 | 1136 | 2040 |
| Pinal | 715 | 801 | 559 | 778 |
| Santa Cruz | 376 | 465 | 294 | 429 |
| Yavapai | 1561 | 1545 | 1362 | 1598 |
| Yuma | 734 | 609 | 529 | 713 |
| Totals | 18936 | 18784 | 13798 | 21492 |
| Majority | 152 | | | 7694 |

I, SIDNEY P. OSBORN, Secretary of State of Arizona, hereby certify that the accompanying table is a true, correct and complete tabulation of the returns of the General Election, held in the State of Arizona on November seventh, nineteen hundred and sixteen, showing the numbers and titles of the proposed amendments to the Constitution, proposed by the Legislature and proposed by initiative petition, and measures proposed by initiative petition in said election; the number of votes cast for and against each amendment, and initiative petition in each county of said State, and the total num-

## OF ARIZONA, NOVEMBER 7, 1916.

### Petition of the People

| An Act to establish the office of State Architect and Superintendent of Building, prescribing his qualifications and duties, fixing his compensation, providing for such employees as from time to time shall be necessary, fixing the compensation and making the appropriations. | | An Act relating to the preservation of Fish and Game and amending Paragraphs 654 and 670, Title XVIII, Penal Code of the Revised Statutes of Arizona, 1913. | | An Act to amend Paragraphs 3859 and 3860, Chapter IV, Title 32, Revised Statutes of Arizona, 1913, Civil Code, relating to Absolute Divorce. | |
|---|---|---|---|---|---|
| 304 YES | 305 NO | 306 YES | 307 NO | 308 YES | 309 NO |
| 54 | 475 | 237 | 320 | 87 | 417 |
| 1833 | 4560 | 2852 | 2637 | 2638 | 2571 |
| 299 | 861 | 686 | 484 | 504 | 550 |
| 2132 | 1301 | 1819 | 1028 | 1416 | 1061 |
| 148 | 1148 | 342 | 889 | 301 | 847 |
| 679 | 784 | 774 | 447 | 738 | 447 |
| 1289 | 8475 | 3616 | 5744 | 2639 | 6914 |
| 741 | 514 | 840 | 333 | 684 | 283 |
| 277 | 876 | 431 | 692 | 348 | 685 |
| 713 | 2490 | 2970 | 1228 | 1320 | 1719 |
| 369 | 1009 | 663 | 614 | 536 | 653 |
| 216 | 550 | 489 | 262 | 381 | 293 |
| 915 | 2030 | 1349 | 1443 | 1403 | 1102 |
| 345 | 887 | 450 | 692 | 569 | 555 |
| 10010 | 25960 | 17518 | 16849 | 13564 | 18097 |
| | 15950 | 669 | | | 4533 |

ber of votes cast for and against each amendment and initiative petitions in said State; and I further certify that this canvass was made in the presence of the Governor and Chief Justice of the Supreme Court of the State of Arizona.

In witness whereof, I have hereunto set my hand and affixed my official seal.

Done at Phoenix, the Capital, this sixth day of December, A. D. 1916.

(Seal)

SIDNEY P. OSBORN,
Secretary of State.

Publicity pamphlets, giving the title and text of each measure submitted, together with arguments filed in favor of and against certain measures, were printed and distributed to 81,755 citizens of the State. The pamphlets contained 80 pages; the total cost of printing, mailing, etc., was $7,189.15, the postage alone amounting to $1,550.00. Of this amount $717.30 was paid by persons having arguments printed.

Because of the fact that the 1913 code does not make registration a qualification of an elector, it is a physical impossibility to check or verify the signatures attached to Initiative or Referendum petitions. In other words, under this condition it is possible that an Initiative or Referendum petition could be legally signed by a sufficient number of persons to insure its submission, and the name of not a single person so signing would appear upon the Great Register of the State. This leaves great opportunity for fraud, and to my mind, demands immediate attention.

Provision should be made whereby persons circulating Initiative or Referendum petitions and securing signatures thereon by misrepresenting the purpose of the petition, or by any misrepresentation whatever, be punished severely. Also, provision should be made for striking names from petitions at the written request of the signers thereof, and a definite time set within which such requests should be received and acted upon.

I believe that an amendment to the State Constitution should be submitted, such amendment providing that when a measure is enacted by the Legislature and approved by the Governor, it immediately become effective, instead of being held in abeyance for ninety days after the close of the session at which it was passed, as is now the case; at the same time allowing a ninety day period for the filing of Referendum petitions. If such petition or petitions containing the requisite number of signatures is directed against a law or laws, they shall remain effective, but at the same time, be submitted to the qualified electors at the next regular General Election. If by the people approved, they, of course, to remain in effect. If rejected, they becoming of no effect. This plan has many advantages over the present method. In the first place, it will give the people opportunity to view and study the

actual working of the law before voting upon it. In the second place, it will prevent Referendum petitions from being directed against measures enacted by the Legislature for the sole purpose of delaying their operation for a period of eighteen months; and lastly, it will allow the Session Laws to be printed and distributed immediately upon the adjournment of the Legislature, whereas now it is an impossibility to do this in a less period than four months after the adjournment of the Legislature.

## FEES.

I have, in every annual report made by this Department, called attention to the fact that the fees required by law to be charged are too high, and I again call your attention to this. To my mind, fees for public services should **not be fixed for profit,** but should be set at a figure that will cover the **actual cost** and nothing more.

## GENERAL RECOMMENDATIONS.

I have recommended before, and again recommend, that the date upon which the Secretary of State is required to make his annual report be changed from January 2nd to June 30th. In other words, this report should cover the fiscal year instead of the calendar year, as is now the case. Under the present system, it is almost, if not entirely, a physical impossibility for the Secretary of State to prepare his annual report for the reason that the great rush incident to the annual registration of motor vehicles comes at the end of the calendar year and every energy of the Department must be directed to that in order that the licensing be accomplished within a reasonable time; and again, it would tend to

simplify the report, as the appropriations are made for the fiscal year and therefore the report must, necessarily, cut the amounts expended in two, showing one-half one year and the other half the following year, and does not show them in their true relation.

In my report for the year 1914, on page 26 appears the following: "It seems that there is no manner provided by law for the canvass of the votes cast for candidates for State office. Section II, of Article V of the State Constitution reads as follows: 'The returns of the election for all State officers shall be canvassed and certificates of election issued by the Secretary of State in such manner as may be provided by law.' However, up to the present time no method has been provided. This defect should, by all means, be corrected by the present Legislature." However, the Legislature of 1915 did not correct this defect, and its failure to do so caused considerable confusion subsequent to the election of 1916. It is imperative that legislation be enacted making the above quoted provisions of our State Constitution as executing, and especially so because the Supreme Court of this State, in the case of State vs. Osborn, declared this provision not self-executing. Such being the case, the Secretary has not the legal right to issue certificates of election, and if issued, they would have no force or effect.

Although not a matter directly connected with my Department, I take the liberty of calling to your attention the great amount of paper, newspapers, waste papers, old books, etc., that go from this Department—and I anticipate in equal amounts from all Departments of the State Government—and is destroyed. It seems to me that some provisions should be made for saving and utilizing this paper. I feel that instead of being an expense to be borne, it should be made a source of profit, and would be a source of profit. Not only should the State set the example in utilizing such matter, thereby adding to the resources of the county, but especially at a time when there seems to be such a great scarcity of paper and a resultant high price therefor. This matter should at least be looked into by the Commission of State Institutions, which is appointed by you, and therefore I am calling it to your attention.

In conclusion, permit me to call your attention to the fact that the books of this Department have not been examined since 1912, and therefore I insist, as sound public policy and as a protection to myself, that such examination be made in the very near future.

Appended hereto are General Election Returns of the election held in this State on November 7, 1916, showing the name of each person voted for, for a national or state office, and the number of votes received by each person in each county in the State:

## GENERAL ELECTION RETURNS, STATE

| | Apache | Cochise | Coconino | Gila | Graham | Greenlee |
|---|---|---|---|---|---|---|
| PRESIDENTIAL ELECTORS | | | | | | |
| Lamar Cobb, Democrat | 648 | 6115 | 1171 | 3686 | 1597 | 1492 |
| Harry E. Pickett, Democrat | 648 | 6115 | 1171 | 3686 | 1577 | 1492 |
| Homer R. Wood, Democrat | 648 | 6115 | 1171 | 3686 | 1584 | 1492 |
| W. W. Cook, Republican | 311 | 3203 | 802 | 1495 | 495 | 672 |
| John C. Greenway, Rep. | 311 | 3203 | 802 | 1495 | 493 | 672 |
| J. L. Hubbell, Republ'can | 311 | 3203 | 802 | 1495 | 497 | 672 |
| Beverly Blunt, Socialist | 16 | 694 | 77 | 510 | 119 | 156 |
| James E. Pawley, Socialist | 16 | 694 | 77 | 510 | 117 | 156 |
| T. C. Pruett, Socialist | 16 | 694 | 77 | 510 | 117 | 156 |
| Eugene W. Chafin, Prohib. | 5 | 120 | 22 | 42 | 44 | 14 |
| O. Gibson, Prohibition | 5 | 120 | 22 | 42 | 36 | 14 |
| J. Stanley Howard, Prohib. | 5 | 120 | 22 | 42 | 39 | 14 |
| UNITED STATES SENATOR: | | | | | | |
| Henry F. Ashurst, Dem. | 477 | 5542 | 962 | 3187 | 1478 | 1408 |
| Joseph H. Kibbey, Rep. | 234 | 3472 | 662 | 1533 | 609 | 601 |
| W. S. Bradford, Socialist | 10 | 569 | 56 | 519 | 123 | 101 |
| REPRESENTATIVE IN CONGRESS: | | | | | | |
| Carl Hayden, Democrat | 593 | 6400 | 1150 | 3514 | 1634 | 1472 |
| Henry L. Eads, Republican | 217 | 2245 | 542 | 1022 | 417 | 481 |
| J. R. Barnette, Socialist | 12 | 591 | 66 | 577 | 129 | 116 |
| JUDGE OF THE SUPREME COURT: | | | | | | |
| Henry D. Ross, Democrat | 322 | 2797 | 691 | 1212 | 740 | 853 |
| O. J. Baughn, Republican | 147 | 2323 | 568 | 1320 | 566 | 492 |
| J. N. Morrison, Socialist | 27 | 534 | 117 | 529 | 131 | 112 |
| STATE TAX COMMISSION: | | | | | | |
| Charles R. Howe, Democrat | 291 | 2835 | 529 | 1204 | 643 | 717 |
| George H. Smalley, Rep. | 87 | 1133 | 388 | 821 | 397 | 346 |
| J. B. Corbin, Socialist | 65 | 608 | 202 | 404 | 132 | 134 |

OF ARIZONA, NOVEMBER 7, 1916.

| Maricopa | Mohave | Navajo | Pima | Pinal | Santa Cruz | Yavapai | Yuma | Totals |
|---|---|---|---|---|---|---|---|---|
| 7634 | 1335 | 1240 | 2079 | 1232 | 726 | 2893 | 1322 | 33170 |
| 7634 | 1335 | 1240 | 2079 | 1232 | 726 | 2893 | 1322 | 33150 |
| 7634 | 1335 | 1240 | 2079 | 1232 | 726 | 2893 | 1322 | 33157 |
| 5747 | 643 | 574 | 2616 | 855 | 666 | 1716 | 727 | 20522 |
| 5747 | 643 | 574 | 2616 | 855 | 666 | 1716 | 727 | 20520 |
| 5747 | 643 | 574 | 2616 | 855 | 666 | 1716 | 727 | 20524 |
| 574 | 243 | 25 | 150 | 60 | 42 | 331 | 177 | 3174 |
| 574 | 243 | 25 | 150 | 60 | 42 | 331 | 177 | 3172 |
| 574 | 243 | 25 | 150 | 60 | 42 | 331 | 177 | 3172 |
| 685 | 5 | 42 | 77 | 32 | 8 | 43 | 14 | 1153 |
| 685 | 5 | 42 | 77 | 32 | 8 | 43 | 14 | 1145 |
| 685 | 5 | 42 | 77 | 32 | 8 | 43 | 14 | 1148 |
| 6293 | 1360 | 1059 | 2168 | 1189 | 738 | 2699 | 1313 | 29873 |
| 7113 | 540 | 645 | 2099 | 851 | 575 | 1689 | 638 | 21261 |
| 524 | 244 | 35 | 120 | 47 | 34 | 288 | 157 | 2827 |
| 8288 | 1143 | 1186 | 2471 | 1467 | 803 | 2855 | 1401 | 34377 |
| 4649 | 450 | 441 | 1698 | 463 | 488 | 1292 | 502 | 14907 |
| 542 | 279 | 34 | 136 | 54 | 34 | 330 | 160 | 3060 |
| 5262 | 661 | 420 | 1233 | 514 | 379 | 1410 | 649 | 17143 |
| 4752 | 422 | 743 | 1632 | 1056 | 524 | 1321 | 741 | 16607 |
| 786 | 146 | 121 | 290 | 76 | 66 | 361 | 174 | 3470 |
| 4533 | 528 | 459 | 836 | 554 | 330 | 1021 | 704 | 15184 |
| 3081 | 275 | 339 | 1823 | 396 | 313 | 926 | 358 | 10683 |
| 1067 | 198 | 198 | 271 | 209 | 128 | 576 | 275 | 4467 |

## GENERAL ELECTION RETURNS, STATE

| | Apache | Cochise | Coconino | Gila | Graham | Greenlee |
|---|---|---|---|---|---|---|
| GOVERNOR: | | | | | | |
| Geo. W. P. Hunt, Democrat | 566 | 5274 | 1041 | 3681 | 1013 | 1371 |
| Thomas E. Campbell, Rep. | 471 | 4433 | 1105 | 1923 | 1212 | 968 |
| Peter T. Robertson, Soc. | 10 | 392 | 54 | 267 | 93 | 34 |
| R. E. Dunlap, Prohib. | ..... | ..... | ---- | ..... | ---- | 3 |
| SECRETARY OF STATE: | | | | | | |
| Sidney P. Osborn, Democrat | 656 | 6048 | 1164 | 3282 | 1513 | 1590 |
| Joe V. Prochaska, Rep. | 277 | 2740 | 737 | 1626 | 514 | 492 |
| Alice S. Eddy, Socialist | 13 | 562 | 68 | 551 | 130 | 91 |
| STATE AUDITOR: | | | | | | |
| Jesse L. Boyce, Democrat | 557 | 4898 | 1305 | 2984 | 1165 | 1350 |
| Doane Merrill, Republican | 308 | 3356 | 649 | 1348 | 707 | 569 |
| J. M. Hall, Socialist | 15 | 616 | 67 | 624 | 133 | 110 |
| STATE TREASURER: | | | | | | |
| David F. Johnson, Democrat | 550 | 5005 | 923 | 2949 | 1262 | 1324 |
| John A. Campbell, Rep. | 320 | 3292 | 846 | 1424 | 584 | 600 |
| E. Johnson, Socialist | 15 | 627 | 70 | 596 | 133 | 106 |
| ATTORNEY GENERAL: | | | | | | |
| Wiley E. Jones, Democrat | 463 | 5076 | 1065 | 3084 | 1030 | 1343 |
| John L. Gust, Republican | 432 | 3341 | 842 | 1416 | 960 | 657 |
| William S Crowe, Socialist | 17 | 603 | 68 | 682 | 132 | 112 |
| SUPT. PUBLIC INSTRUCTION: | | | | | | |
| C. O. Case, Democrat | 479 | 4972 | 935 | 2954 | 994 | 1360 |
| H. E. Matthews, Rep. | 409 | 3340 | 904 | 1373 | 1000 | 589 |
| Jessie E. Bright | 16 | 642 | 74 | 738 | 127 | 119 |

**OF ARIZONA, NOVEMBER 7, 1916.** (Continued).

| Maricopa | Mohave | Navajo | Pima | Pinal | Santa Cruz | Yavapai | Yuma | Totals |
|---|---|---|---|---|---|---|---|---|
| 5087 | 1379 | 870 | 2233 | 1059 | 715 | 2385 | 1272 | 27946 |
| 8549 | 711 | 952 | 2561 | 1111 | 704 | 2435 | 841 | 27976 |
| 482 | 163 | 20 | 83 | 39 | 24 | 162 | 152 | 1975 |
| 342 | ..... | 23 | .... | 19 | 7 | 2 | ..... | 396 |
| 7368 | 1415 | 1188 | 2618 | 1330 | 759 | 2750 | 1394 | 33075 |
| 5789 | 438 | 515 | 1844 | 632 | 550 | 1470 | 558 | 18182 |
| 608 | 281 | 30 | 139 | 63 | 43 | 330 | 164 | 3073 |
| 6602 | 1246 | 926 | 2097 | 1129 | 675 | 2243 | 1175 | 28352 |
| 5857 | 525 | 654 | 2127 | 682 | 584 | 1697 | 661 | 19724 |
| 607 | 295 | 30 | 147 | 64 | 45 | 317 | 166 | 3236 |
| 6601 | 1177 | 904 | 2044 | 1087 | 684 | 2235 | 1165 | 27910 |
| 5796 | 601 | 660 | 2196 | 726 | 590 | 1610 | 680 | 19925 |
| 583 | 286 | 46 | 159 | 57 | 40 | 334 | 179 | 3231 |
| 6412 | 1247 | 937 | 2146 | 1200 | 718 | 2322 | 1175 | 28218 |
| 6398 | 576 | 687 | 2177 | 721 | 662 | 1715 | 713 | 21297 |
| 548 | 290 | 35 | 171 | 59 | 35 | 313 | 159 | 3224 |
| 6444 | 1202 | 886 | 2263 | 1104 | 707 | 2225 | 1157 | 27682 |
| 6256 | 551 | 711 | 1987 | 771 | 576 | 1810 | 724 | 21001 |
| 581 | 320 | 47 | 160 | 67 | 43 | 344 | 168 | 3446 |

## GENERAL ELECTION RETURNS, STATE

| | Apache | Cochise | Coconino | Gila | Graham | Greenlee |
|---|---|---|---|---|---|---|
| CORPORATION COMMISSION: | | | | | | |
| Amos A. Betts, Democrat | 544 | 5383 | 1065 | 3144 | 1290 | 1419 |
| J. Harrie Cloonan, Rep. | 306 | 2362 | 692 | 1081 | 532 | 461 |
| M. T. Bruce, Socialist | 17 | 645 | 72 | 644 | 132 | 105 |
| STATE MINE INSPECTOR: | | | | | | |
| G. H. Bolin, Democrat | 533 | 4793 | 999 | 2842 | 1199 | 1383 |
| Norman J. McKenzie, Rep. | 301 | 3935 | 773 | 1490 | 679 | 553 |
| J. E. Pruett, Socialist | 17 | 603 | 82 | 782 | 135 | 119 |

**OF ARIZONA, NOVEMBER 7, 1916.** (Continued).

| Maricopa | Mohave | Navajo | Pima | Pinal | Santa Cruz | Yavapai | Yuma | Totals |
|---|---|---|---|---|---|---|---|---|
| 8269 | 1300 | 965 | 2210 | 1207 | 685 | 2529 | 1209 | 31219 |
| 4408 | 447 | 564 | 1937 | 602 | 567 | 1299 | 598 | 15856 |
| 562 | 291 | 39 | 158 | 65 | 42 | 343 | 171 | 3286 |
| 6281 | 1112 | 896 | 2119 | 1145 | 696 | 2264 | 1120 | 27382 |
| 6023 | 681 | 638 | 2130 | 746 | 563 | 1602 | 694 | 20808 |
| 600 | 325 | 38 | 154 | 63 | 44 | 354 | 177 | 3493 |

I, SIDNEY P. OSBORN, Secretary of State of Arizona, hereby certify that the accompanying table is a true, correct and complete tabulation of the returns of the General Election held in the State of Arizona on November 7th, 1916, showing the name of each person voted for, for a National or State Office, in said election, the number of votes received by each person in each county of said State, and total number of votes received by each person in the said State.

Dated Phoenix, Arizona, December 6th, 1916.

(SEAL)

SIDNEY P. OSBORN,
Secretary of State.